

GHANA ARBITRATION AND COMMERCIAL LAW REVIEW

How to Effectively Arbitrate: The Qualities
and Craft of the Good Arbitrator



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How to Effectively Arbitrate: The Qualities and Craft of the Good Arbitrator

(With Reference to the Accra Arbitration Rules)

Arbitration is a system of private justice founded on party autonomy, procedural fairness, and enforceability of awards. Parties who choose arbitration entrust the arbitrator with the authority to resolve their dispute efficiently, fairly, and in accordance with agreed rules. The effectiveness of arbitration therefore depends significantly on the competence, integrity, and procedural discipline of the arbitrator.

Under modern arbitral practice including frameworks such as the Accra Arbitration Rules, which emphasize procedural efficiency, fairness, and international best practice the arbitrator performs multiple functions: adjudicator, procedural manager, and guardian of due process.

1. Independence and Impartiality

The cornerstone of arbitration is independence and impartiality. An arbitrator must decide the dispute without bias, favour, or prejudice toward either party.

Under the Accra Arbitration Rules, arbitrators are expected to:



Disclose any circumstances that may give rise to justifiable doubts as to their impartiality or independence.



Avoid conflicts of interest throughout the proceedings



Maintain professional neutrality in all procedural decisions

This principle is fundamental because the legitimacy of arbitration rests on the confidence of the parties in the neutrality of the tribunal.



2. Mastery of the Applicable Rules and Law

Under the Accra Arbitration Rules, arbitrators are expected to:



The applicable substantive law governing the dispute



The procedural framework of the arbitration



International enforcement mechanisms such as the New York Convention 1958

Where proceedings are conducted under the Accra Arbitration Rules, the arbitrator must also understand the procedural structure contemplated by the Rules, including:

1

- Constitution of the arbitral tribunal

2

- Preliminary or case management meetings

3

- Timelines for submissions and hearings

4

- The role of mediation or settlement discussions where appropriate

Familiarity with the rules ensures that proceedings remain orderly, predictable, and legally sound.

3. Effective Case Management

A hallmark of modern arbitration including under the Accra Arbitration Rules is efficient procedural management.

A competent arbitrator should:



Convene an early preliminary meeting or case management conference



Establish clear procedural timelines



Identify the key issues in dispute



Encourage efficient document production

Good case management ensures that arbitration achieves one of its primary objectives: a faster and more flexible alternative to court litigation.

4. Commitment to Procedural Fairness

A fundamental obligation of an arbitrator is to ensure equal treatment of the parties and full opportunity to present their case.

Under the Accra Arbitration Rules, the tribunal must safeguard due process by ensuring:

 Each party has a reasonable opportunity to present evidence and arguments

 Procedural decisions are transparent and justified

 No party is placed at an unfair disadvantage

Failure to uphold due process may result in challenges to the award or difficulties in enforcement



5. Analytical Ability and Understanding of Evidence

Arbitration disputes often involve extensive documentary evidence, technical reports, and expert testimony. An effective arbitrator must therefore possess strong analytical and evaluative skills.

This includes the ability to:



Identify the decisive issues in dispute



Evaluate credibility and reliability of evidence



Distinguish between relevant facts and peripheral arguments



Apply legal principles logically to the evidence presented

A good arbitrator does not simply listen passively but actively engages with the issues and tests the strength of the parties' arguments.



6. Encouraging Settlement Where Appropriate

While arbitration culminates in a binding award, many modern arbitration frameworks including the Accra Arbitration Rules recognize the value of amicable settlement mechanisms.

An effective arbitrator may, where appropriate:



Encourage parties to explore settlement



Facilitate mediation discussions



Allow procedural pauses for negotiation

Such approaches preserve commercial relationships and may resolve disputes more efficiently.



7. Clear and Reasoned Award Writing

The final award is the most important product of the arbitration process. An effective arbitrator must produce an award that is clear, structured, and legally sound.

A strong arbitral award generally contains:

- 1** Identification of the parties and procedural background
- 2** Summary of the parties' claims and defenses
- 3** Determination of jurisdiction and applicable law
- 4** Evaluation of evidence and legal analysis
- 5** Clear reasoning and conclusions
- 6** The final dispositive orders of the tribunal

Under the Accra Arbitration Rules, the tribunal is expected to deliver a reasoned award capable of recognition and enforcement internationally.

8. Integrity, Confidentiality, and Professional Discipline

Arbitrators must uphold the highest standards of professional integrity.

An effective arbitrator may, where appropriate:



Maintaining confidentiality of proceedings



Avoiding improper communications with parties



Acting with professionalism and courtesy toward counsel and witnesses



Delivering decisions within reasonable timeframes

Timeliness is particularly important because arbitration is frequently chosen for its efficiency compared with court litigation.



9. Judicial Temperament and Listening Skills

Beyond technical competence, effective arbitrators possess a calm and balanced judicial temperament.

They must:



Listen attentively to all parties



Maintain control of hearings without unnecessary rigidity



Treat counsel and witnesses with respect



Foster an atmosphere of procedural dignity and fairness

Timeliness is particularly important because arbitration is frequently chosen for its efficiency compared with court litigation.



Conclusion

Effective arbitration requires a combination of legal expertise, procedural discipline, analytical rigor, and personal integrity. An arbitrator operating under frameworks such as the Accra Arbitration Rules must ensure that proceedings remain fair, efficient, and transparent while producing a well-reasoned and enforceable award.

When these qualities are present, arbitration fulfils its central promise: providing parties with a reliable, neutral, and internationally respected forum for the resolution of disputes.

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